



INDIAN POLITY



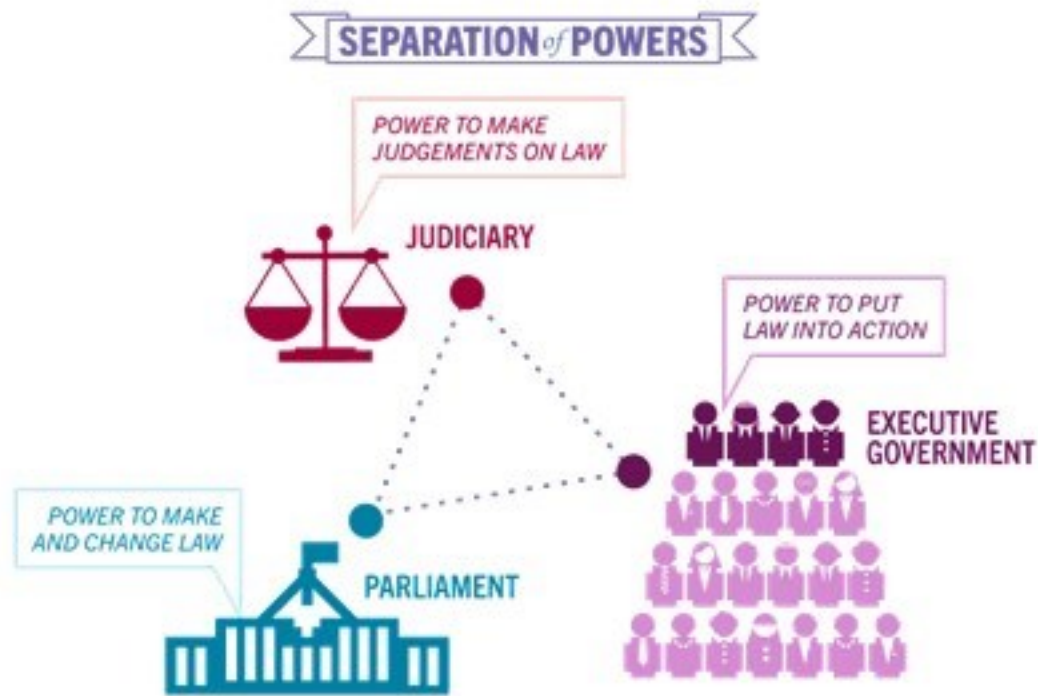
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CENTRE-STATE RELATIONS

■ LEGISLATIVE RELATIONS

MODULE – 86



- 1** The Constitution of India, being federal in structure, divides all powers (legislative, executive and financial) between the Centre and the states.
- 2** However, there is no division of judicial power as the Constitution has established an **integrated judicial system** to enforce both the Central laws as well as state laws.
- 3** The Centre-state relations can be studied under three heads:
 - Legislative relations.
 - Administrative relations.
 - Financial relations.

CENTRE-STATE RELATIONS

LEGISLATIVE RELATIONS

- 1 Articles 245 to 255 in Part XI of the Constitution deal with the legislative relations between the Centre and the states.
- 2 Like any other Federal Constitution, the Indian Constitution also divides the legislative powers between the Centre and the states with respect to both the territory and the subjects of legislation.
- 3 Further, the Constitution provides for the parliamentary legislation in the state field under five extraordinary situations as well as the centre's control over state legislation in certain cases.

Thus, there are four aspects in the Centre-states legislative relations, viz.,

- *Territorial extent of Central and state legislation;*
- *Distribution of legislative subjects;*
- *Parliamentary legislation in the state field; and*
- *Centre's control over state legislation.*

CENTRE-STATE RELATIONS

LEGISLATIVE RELATIONS

1. Territorial Extent of Central and State Legislation

The Constitution defines the territorial limits of the legislative powers vested in the Centre and the states in the following way:

1

- The Parliament can make laws for the whole or any part of the territory of India.
- The territory of India includes the states, the union territories, and any other area for the time being included in the territory of India.

2

- A state legislature can make laws for the whole or any part of the state.
- The laws made by a state legislature are not applicable outside the state, except when there is a sufficient nexus between the state and the object.

3

- The Parliament alone can make 'extra-territorial legislation'.
- Thus, the laws of the Parliament are also applicable to the Indian citizens and their property in any part of the world.

CENTRE-STATE RELATIONS

LEGISLATIVE RELATIONS

1. Territorial Extent of Central and State Legislation

However, the Constitution places certain restrictions on the plenary territorial jurisdiction of the Parliament. In other words, the laws of Parliament are not applicable in the following areas:

1

- The President can make regulations for the peace, progress and good government of the four Union Territories—the Andaman and Nicobar Islands, Lakshadweep, Dadra and Nagar Haveli and Daman and Diu.
- A regulation so made has the same force and effect as an act of Parliament.

2

The governor is empowered to direct that an act of Parliament does not apply to a scheduled area in the state or apply with specified modifications and exceptions.



3

- The Governor of Assam may likewise direct that an act of Parliament does not apply to a tribal area in the state or apply with specified modifications and exceptions.
- The President enjoys the same power with respect to tribal areas in Meghalaya, Tripura and Mizoram.

CENTRE-STATE RELATIONS

LEGISLATIVE RELATIONS

2. Distribution of Legislative Subjects

The Constitution provides for a three-fold distribution of legislative subjects between the Centre and the states, viz., List-I (the Union List), List-II (the State List) and List-III (the Concurrent List) in the Seventh Schedule:

1

The Parliament has exclusive powers to make laws with respect to any of the matters enumerated in the **Union List**.

Eg: defence, banking, foreign affairs, atomic energy, insurance etc.

2

The state legislature has “in normal circumstances” exclusive powers to make laws with respect to any of the matters enumerated in the **State List**.

Eg: public order, agriculture, sanitation etc.

3

Both, the Parliament and state legislature can make laws with respect to any of the matters enumerated in the **Concurrent List**.

Eg: electricity, labour welfare, economic and social planning etc.

CENTRE-STATE RELATIONS

LEGISLATIVE RELATIONS

MORE ON DISTRIBUTION OF LEGISLATIVE SUBJECTS



- 1** The 42nd Amendment Act of 1976 transferred five subjects to Concurrent List from State List, that is,
- a) Education
 - b) Forests
 - c) Weights and measures
 - d) Protection of wild animals and birds
 - e) Administration of justice; constitution and organisation of all courts except the Supreme Court and the high courts.

CENTRE-STATE RELATIONS

LEGISLATIVE RELATIONS

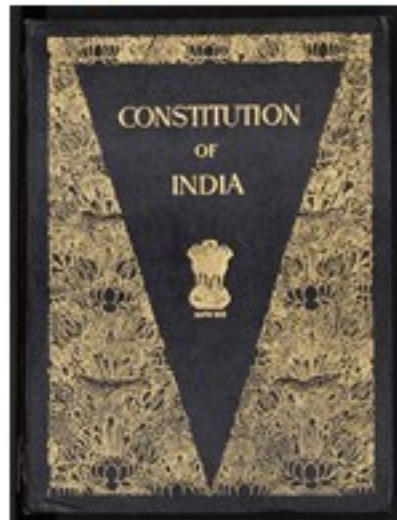
MORE ON DISTRIBUTION OF LEGISLATIVE SUBJECTS

- 2 The power to make laws with respect to **residuary subjects** (i.e., the matters which are not enumerated in any of the three lists) is vested in the **Parliament**.
- 3 This residuary power of legislation includes the power to levy residuary taxes.
- 4 From the above scheme, it is clear that the matters of **national importance** and the matters which require **uniformity of legislation nationwide** are included in the Union List.
- 5 The matters of **regional and local importance** and the matters which **permit diversity of interest** are specified in the State List.
- 6 The matters on which uniformity of legislation throughout the country is **desirable but not essential** are enumerated in the concurrent list.
- 7 Thus, it permits diversity along with uniformity.

CENTRE-STATE RELATIONS

LEGISLATIVE RELATIONS

WHICH LIST PREVAILS OVER THE OTHER?



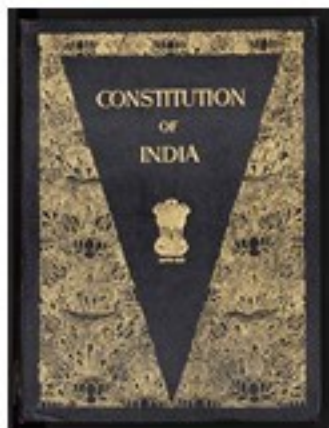
- 1 The Constitution expressly secures the predominance of the Union List over the State List and the Concurrent List and that of the Concurrent List over the State List.

- 2 Thus, in case of overlapping between the Union List and the State List, the former should prevail.
- 3 In case of overlapping between the Union List and the Concurrent List, it is again the former which should prevail.
- 4 Where there is a conflict between the Concurrent List and the State List, it is the former that should prevail.

CENTRE-STATE RELATIONS

LEGISLATIVE RELATIONS

WHAT HAPPENS IN CASE OF CONFLICT BETWEEN CENTRAL AND STATE LAWS?



1 In case of a conflict between the Central law and the state law on a subject enumerated in the Concurrent List, the central law prevails over the state law.

2 But, there is an **exception**. If the **state law** has been reserved for the consideration of the president and has received his assent, then the state law prevails in that state.

3 But, it would still be competent for the **Parliament to override** such a law by subsequently making a law on the same matter.

CENTRE-STATE RELATIONS

LEGISLATIVE RELATIONS

3. Parliamentary Legislation in the State Field

In abnormal times, the Constitution empowers the Parliament to make laws on any matter enumerated in the State List under the following five extraordinary circumstances:



1 When Rajya Sabha Passes a Resolution.

2 During a National Emergency

3 When States Make a Request

4 To Implement International Agreements

5 During President's Rule

CENTRE-STATE RELATIONS

LEGISLATIVE RELATIONS

3. Parliamentary Legislation in the State Field

POINT NO:1

When Rajya Sabha Passes a Resolution

- 1 If the Rajya Sabha declares that it is necessary in the national interest that Parliament should make laws on a matter in the State List, then the Parliament becomes competent to make laws on that matter.
- 2 Such a resolution must be supported by two-thirds of the members present and voting.
- 3 The resolution remains in force for one year; it can be renewed any number of times but not exceeding one year at a time.
- 4 The laws cease to have effect on the expiration of six months after the resolution has ceased to be in force.
- 5 This provision does not restrict the power of a state legislature to make laws on the same matter.
- 6 But, in case of inconsistency between a state law and a parliamentary law, the latter is to prevail.

CENTRE-STATE RELATIONS

LEGISLATIVE RELATIONS

3. Parliamentary Legislation in the State Field

POINT NO:2

During a National Emergency



- 1 The Parliament acquires the power to legislate with respect to matters in the State List, while a proclamation of **national emergency** is in operation.

- 2 The laws become inoperative on the **expiration of six months** after the emergency has ceased to operate.
- 3 Here also, the power of a state legislature to make laws on the same matter is not restricted.
- 4 But, in **case of repugnancy** between a state law and a parliamentary law, the **latter is to prevail**.

CENTRE-STATE RELATIONS

LEGISLATIVE RELATIONS

3. Parliamentary Legislation in the State Field

POINT NO:3

When States Make a Request



- 1 When the legislatures of two or more states pass resolutions requesting the Parliament to enact laws on a matter in the State List, then the Parliament can make laws for regulating that matter.

- 2 A law so enacted applies **only to those states which have passed the resolutions.**
- 3 Such a law **can be amended or repealed only by the Parliament** and not by the legislatures of the concerned states.
- 4 The effect of passing a resolution under the above provision is that the Parliament becomes entitled to legislate with respect to a matter for which it has no power to make a law.
- 5 On the other hand, the **state legislature ceases to have the power to make a law** with respect to that matter.

CENTRE-STATE RELATIONS

LEGISLATIVE RELATIONS

3. Parliamentary Legislation in the State Field

POINT NO:3

When States Make a Request



6 The resolution operates as abdication or surrender of the power of the state legislature with respect to that matter and **it is placed entirely in the hands of Parliament** which alone can then legislate with respect to it

7 Some examples of laws passed under the above provision are Prize Competition Act, 1955; Wild Life (Protection) Act, 1972; Water (Prevention and Control of Pollution) Act, 1974; Urban Land (Ceiling and Regulation) Act, 1976; and Transplantation of Human Organs Act, 1994.

CENTRE-STATE RELATIONS

LEGISLATIVE RELATIONS

3. Parliamentary Legislation in the State Field

POINT NO:4

To Implement International Agreements



- 1 The Parliament can make laws on any matter in the State List for implementing the **international treaties, agreements or conventions**.
- 2 This provision enables the Central government to fulfill its international obligations and commitments.
- 3 Some examples of laws enacted under the above provision are United Nations (Privileges and Immunities) Act, 1947; Geneva Convention Act, 1960; Anti-Hijacking Act, 1982 and legislations relating to environment and TRIPS.

CENTRE-STATE RELATIONS

LEGISLATIVE RELATIONS

3. Parliamentary Legislation in the State Field

POINT NO:5

During President's Rule



- 1 When the President's rule is imposed in a state, the **Parliament becomes empowered to make laws with respect to any matter in the State List** in relation to that state.

- 2 A law made so by the Parliament continues to be operative even after the president's rule.
- 3 This means that the **period for which such a law remains in force is not co-terminus with the duration of the President's rule.**
- 4 But, such a law can be repealed or altered or re-enacted by the state legislature.

CENTRE-STATE RELATIONS

LEGISLATIVE RELATIONS

4. Centre's Control Over State Legislation

Besides the Parliament's power to legislate directly on the state subjects under the exceptional situations, the Constitution empowers the Centre to exercise control over the state's legislative matters in the following ways:

1

- The governor can **reserve certain types of bills** passed by the state legislature for the consideration of the President.
- The president enjoys **absolute veto** over them.

2

- Bills on certain matters enumerated in the State List can be introduced in the state legislature only with the **previous sanction of the president**.
- Eg: The bills imposing restrictions on the freedom of trade and commerce.

3

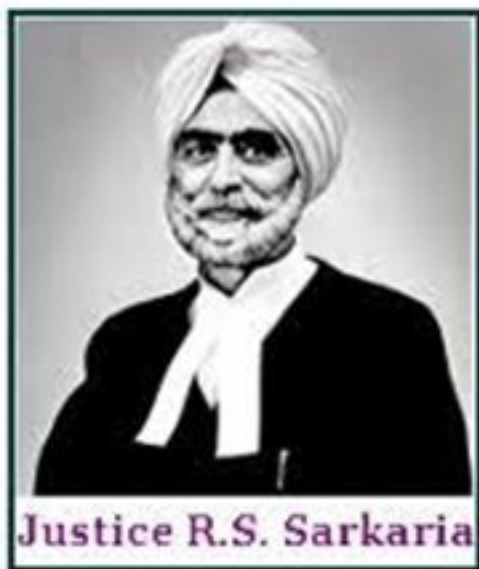
- The President can direct the states to **reserve money bills and other financial bills** passed by the state legislature for his consideration during a **financial emergency**.

CENTRE-STATE RELATIONS

LEGISLATIVE RELATIONS

CONCLUDING REMARKS

From the above, it is clear that the Constitution has assigned a position of superiority to the Centre in the legislative sphere.



In this context, the Sarkaria Commission on Centre-State Relations (1983-87) observed:

- The rule of federal supremacy is a technique to avoid absurdity, resolve conflict and ensure harmony between the Union and state laws.
- If this principle of union supremacy is excluded, it is not difficult to imagine its deleterious results.
- There will be every possibility of our two-tier political system being stultified by strife, legal chaos and confusion caused by a host of conflicting laws, much to the bewilderment of the common citizen.
- The federal principle of unity in diversity will be very much a casualty.
- This rule of federal supremacy, therefore, is indispensable for the successful functioning of the federal system.

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